

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stacy Paver	Team: Team # 4	CCRB Case #: 201009254	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 07/06/2010 5:53 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	18 Mo. SOL 1/6/2012	Precinct: 44
Date/Time CV Reported Thu, 07/08/2010 1:59 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/08/2010 1:59 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An officer			
3. POM Michael Greaney	20646	947762	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Robert Mccadden	12997	945974	044 PCT
2. POM Roger Bennett	24300	934480	044 PCT
3. POM Thomas Adams	01483	942927	044 PCT
4. LT Johnny Orellana	00000	920679	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Force: Officers used physical force against § 87(2)(b)	A . Officer(s) Unidentified
B . POM Michael Greaney	Force: PO Michael Greaney used physical force against § 87(2)(b)	B . Unsubstantiated
C . An officer	Force: An officer used physical force against § 87(2)(b)	C . Alleged Victim Uncooperative
D . An officer	Abuse: An officer refused to provide his name and shield number to § 87(2)(b)	D . Alleged Victim Uncooperative

Case Summary

On July 8, 2010, § 87(2)(b) called the CCRB and filed a complaint against NYPD officers (encl. 4A-B). On July 6, 2010, at approximately 5:53 p.m., officers responded to an assault at § 87(2)(b) and § 87(2)(b) in the Bronx. § 87(2)(b) was arrested § 87(2)(a) 160.50 § 87(2)(b). The following allegations resulted from the officers' actions:

Allegation A-Force: Officers used physical force against § 87(2)(b) § 87(2)(g). It is recommended that **Allegation A** be closed as *Officer(s) Unidentified*.

Allegation B-Force: PO Michael Greaney used physical force against § 87(2)(b) § 87(2)(g). It is recommended that **Allegation B** be closed as *Unsubstantiated*.

Allegation C-Force: An officer used physical force against § 87(2)(b).

Allegation D-Abuse of Authority: An officer refused to provide his name and shield number to § 87(2)(b) § 87(2)(g). It is recommended that **Allegations C and D** be closed and *Victim Uncooperative*.

Results of Investigation

Civilian Statement(s)

Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) Hispanic male who is § 87(2)(b) with brown eyes. At the time of his CCRB interview, § 87(2)(b) was a student at § 87(2)(b).

CCRB Statement

On August 6, 2010, § 87(2)(b) was interviewed at the CCRB (encl. 5A-E). On July 6, 2010, at approximately 5:53 p.m., § 87(2)(b) and his cousin, § 87(2)(b) walked to a deli at § 87(2)(b) and § 87(2)(b) in the Bronx. Several individuals were fighting across the street from the deli. § 87(2)(b) and § 87(2)(b) entered the store. PO Robert McCadden and PO Michael Mannese, both assigned to the 44th Precinct and identified by the investigation, stood on the corner and they called for backup. § 87(2)(b) identified PO McCadden as PO "McLean" in his CCRB statement and as PO "McGellan" when he initially filed this complaint. In § 87(2)(b)'s initial statement, he stated that PO McCadden was not present. § 87(2)(b) described PO McCadden as a white male, with blue eyes, between 5'9" and 5'10" tall, with short light brown hair, weighs 195 pounds, and wore uniform. He described PO Mannese as a white male who was "skinny," 170 pounds, 5'11" tall, and wore uniform.

§ 87(2)(b) exited the store and observed his friend, § 87(2)(b) speaking with officers. § 87(2)(b) asked § 87(2)(b) what was going on. Numerous officers arrived. A female officer, PO3, told § 87(2)(b) to move away. He described PO3 as a Hispanic female, who was 5'9" tall, with brown hair, weighed 165 pounds, wore glasses, and was in uniform. § 87(2)(b) and § 87(2)(b) immediately walked away. § 87(2)(b) walked toward § 87(2)(b) and away from the crowd. While § 87(2)(b) and § 87(2)(b) spoke, an officer in plainclothes, PO4, approached § 87(2)(b) and punched him in on the right side of his face. PO4 wore a button-down gray shirt, a blue hat, and jeans. He was 5'9" tall and weighed between 185 and 190 pounds. § 87(2)(b) never observed PO4's face and therefore would not be able to identify him in a photograph. § 87(2)(b) followed PO4 and asked why he hit him. § 87(2)(b) did not make any physically combative motions toward him. While he followed PO4, PO Michael Greaney, assigned to the 44th Precinct and identified by the investigation, approached § 87(2)(b).

§ 87(2)(b) and punched him on the right side of his face. § 87(2)(b) described PO Greaney as a chubby white male with a bald head, in uniform, 5'8" tall, and 220 pounds. PO Greaney went to hit § 87(2)(b) again and § 87(2)(b) grabbed PO Greaney's hand and asked why he was hitting him. When he grabbed PO Greaney's hand, PO6 hit § 87(2)(b) on the left side of his cheek with his fist. § 87(2)(b) did not observe PO6 and could not describe him. He was then hit with a fist on the back on his head and he did not see who did this.

§ 87(2)(b) threw himself on the ground and placed his arms behind his back. An officer tried to pull his left arm upward when he was handcuffing him, but § 87(2)(b) already had his hands behind his back. § 87(2)(b) then started to move his hands and struggled with the officer. After he was handcuffed, PO Greaney had his knee in his back. The left side of § 87(2)(b)'s face was to the ground and PO Greaney punched him with his right hand on the right side of his face. PO Greaney picked § 87(2)(b) up from the ground by his shirt, which ripped when he was grabbed. § 87(2)(b) did not observe PO McCadden have any physical interaction with him. § 87(2)(b) was transported to the 44th Precinct stationhouse by PO Greaney and a black male officer, PO7.

§ 87(2)(b) presented pictures to the CCRB on his cellular telephone, which he stated were taken by § 87(2)(b) on July 9, 2010, three days after the incident. § 87(2)(b) had a scratch on the right side of his body, a swollen face, a scratch on his left shoulder, bruise on right leg, and a scratch on his foot from when he was struggling on the ground with officers. No civilians hit § 87(2)(b). § 87(2)(b) did not seek medical treatment. § 87(2)(b) would be able to identify PO McCadden, PO2, and PO Greaney in photographs and would not be able to identify the other officers. § 87(2)(b) did not seek medical treatment.

VICTIM: § 87(2)(b)

Telephone Statement

§ 87(2)(b) provided a telephone statement to the CCRB on August 24, 2010 (encl. 6). § 87(2)(b) walked toward § 87(2)(b) and § 87(2)(b). He observed a fight between two black males. They ran toward § 87(2)(b) and § 87(2)(b). § 87(2)(b) ran behind them and explained the situation to the officers. § 87(2)(b) told male officers what happened and a male officer told § 87(2)(b) to go lean on their vehicle and wait so they could obtain the other side of the story. § 87(2)(b) exited the store and asked § 87(2)(b) what happened. § 87(2)(b) told him what was going on as they walked toward the patrol car and then a male officer in plainclothes who was between 5'4" and 5'5" tall, chunky, with blonde hair, and wore a gray and maroon shirt with jeans punched § 87(2)(b) in the face. No officer instructed § 87(2)(b) or § 87(2)(b) to do anything before he was hit. No female officer instructed either § 87(2)(b) or § 87(2)(b) to do anything. § 87(2)(b) did not know he was an officer and tried to pull § 87(2)(b) away when the same officer then punched § 87(2)(b) in the left side of his nose two times. § 87(2)(b) was brought to the ground by a uniformed officer. When § 87(2)(b) was on the ground, he observed two more male officers punch § 87(2)(b) but he stated that he would not be able to describe them at all including their race. § 87(2)(b) and § 87(2)(b) were placed in a van and they asked the officer in the van for his name and he did not provide it. Only uniformed officers were in the van. At the stationhouse § 87(2)(b) asked the officer again for his name and shield number and he did not provide it.

Attempts to Obtain a Sworn Statement

Several attempts were made to obtain a sworn statement from § 87(2)(b). On August 24, 2010 § 87(2)(b) provided details regarding this incident and stated that he would call to schedule an appointment to provide a sworn statement. On September 9, 2010, § 87(2)(b) called the CCRB and scheduled an appointment for September 16, 2010. § 87(2)(b) did not appear for his scheduled appointment and was subsequently sent a missed appointment letter. On September 22, 2010, the undersigned called § 87(2)(b).

§ 87(2)(b) and his phone was not accepting incoming calls. On September 22, 2010, § 87(2)(b) was sent a final please call letter. On September 30, 2010, and October 4, 2010, the letters were returned from the United States Postal Service with a label affixed that stated there was no such address.

Witness: § 87(2)(b)

On October 20, 2010, § 87(2)(b) provided a telephone statement to the CCRB (encl. 7). § 87(2)(b) and § 87(2)(b) walked to the store on the corner of § 87(2)(b) and § 87(2)(b). When they got to the store, § 87(2)(b) saw his friend, § 87(2)(b) who was against a wall in handcuffs with between two and three uniformed officers, none of whom were female. § 87(2)(b) approached § 87(2)(b) and the officers and explained that § 87(2)(b) was not a part of what was going on and that they stopped the wrong person. As § 87(2)(b) argued with the officers an unmarked black Lincoln Navigator with tinted windows occupied by four plainclothes officers arrived. § 87(2)(b) with still arguing with the uniformed officers and PO1, who § 87(2)(b) described as a white male who was approximately 6'2" tall, weighed 200 pounds, and "fat," in his late 30's or early 40's, and in plainclothes approached § 87(2)(b) and told him that he would "get hit too." § 87(2)(b) stated that he did not observe any officer hit anyone before PO1 made that statement and did not know why PO1 said it. § 87(2)(b) argued with PO1 and PO1 punched him in the left cheek. § 87(2)(b) swung back at PO1. When § 87(2)(b) swung at PO1, uniformed officers attempted to bring him to the ground. § 87(2)(b) went down to the ground without an officer bringing him to the ground. § 87(2)(b) did not observe any other officer hit § 87(2)(b). § 87(2)(b) saw uniformed officers swing their batons, but did not observe any officer make physical contact with § 87(2)(b).

Attempts to Contact Witnesses

Witness: § 87(2)(b)

§ 87(2)(b) was arrested as a result of this incident. A LexisNexis search for § 87(2)(b) provided an address and no telephone number. A phone number was listed for someone with the same last name. On September 23, 2010, the undersigned called the telephone number provided from LexisNexis number for § 87(2)(b)'s relative and left a message on the voicemail requesting a call. On September 23, 2010, letters were sent to § 87(2)(b) at the address listed on the BADS report and to the LexisNexis address. On October 21, 2010, the undersigned called the LexisNexis number for § 87(2)(b). A woman answered and stated that the CCRB called the wrong number and hung up the telephone. On October 21, 2010, § 87(2)(b) was sent final please call letters to the BADS address and the LexisNexis address. To date, there has been no response from § 87(2)(b).

Witness: § 87(2)(b)

§ 87(2)(b) was arrested as a result of this incident. A LexisNexis search for § 87(2)(b) yielded no relevant findings. On September 23, 2010, and October 21, 2010, letters were sent to § 87(2)(b) at the address listed on the BADS report. On October 19, 2010, the CCRB received a letter back from the United States Postal Service with an affixed label that stated, "Return to sender, attempted not known, unable to forward."

NYPD Statement(s):

Subject Officer: PO MICHAEL GREANEY

- PO Greaney is a § 87(2)(b) white male who § 87(2)(b), with a bald head and blue eyes.
- On July 6, 2010, PO Greaney worked from 5:30 p.m. through 2:30 a.m. He was assigned to RMP #5487 with Sgt. Cronin. He was assigned to Impact auto and was dressed in uniform (encl. 19A-N).
- On February 15, 2011, PO Greaney was interviewed at the CCRB (encl. 9A-C).

Memo Book

17:50 – 10-85 on § 87(2)(b)

4 males under

17:50 – § 87(2)(b)

Arrest – PO McCadden Arrest one male for intervening. Male to PO Greaney do you want to get hit and raised his hands to PO Greaney another male grabbed PO Greaney by the shirt. Both males under § 87(2)(b) Four males to 44th Precinct.

17:59 84 (encl. 8A-C)

CCRB Statement

On July 6, 2010, at approximately 5:53 p.m., PO Greaney responded as backup for the location. He observed an officer making an arrest. There was a large crowd present. Two males were asked to back up and allow the officers to finish what they were doing. § 87(2)(b) asked PO Greaney if he “wanted to get hit.” § 87(2)(b) raised his hands motioning to hit PO Greaney. When § 87(2)(b) put his hands up, another male grabbed PO Greaney by the shirt. PO Greaney hit § 87(2)(b) in the face one time to keep him back. § 87(2)(b) was placed in handcuffs by another officer, whom PO Greaney could not identify. § 87(2)(b) was handcuffed on the ground. PO Greaney did not know how § 87(2)(b) was brought to the ground. PO Greaney did not have any interaction with § 87(2)(b) during the handcuffing process. PO Greaney took § 87(2)(b) to the precinct in the van. PO Greaney did not see any officer kick or punch § 87(2)(b) while he was on the ground. PO Greaney could not recall any other officers present during this incident.

Witness Officer: PO ROBERT MCCADDEN

- PO McCadden is a § 87(2)(b) white male, who is § 87(2)(b), with brown hair and brown eyes (encl. 10).
- On July 6, 2010, PO McCadden worked 5:30 p.m. through 2:00 a.m. and was assigned to a foot post. He worked with PO Mannese and was dressed in uniform (encl. 19A-N).
- On February 7, 2011, PO McCadden was interviewed at the CCRB (encl. 11A-C).

Arrest Paperwork

PO McCadden was the arresting officer for § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b). § 87(2)(b) and § 87(2)(b) were charged § 87(2)(a) 160.50. § 87(2)(b) was charged § 87(2)(a) 160.50. § 87(2)(b) was charged § 87(2)(a) 160.50.

CCRB Statement

PO McCadden and PO Mannese walked toward their foot post by § 87(2)(b) and § 87(2)(b). They were approached by a female screaming that she and her husband were attacked. PO McCadden placed a radio call that they had several under arrest and requested additional units to respond. § 87(2)(b) exited the bodega on the corner, walked past the officers, and intervened in the arrest. PO Greaney later told PO McCadden that § 87(2)(b) “swung” at PO Greaney. PO McCadden did not see any interaction between § 87(2)(b) and the officers because it occurred behind his back while he was trying to arrest the other individuals. Plainclothes officers responded to the incident but PO McCadden did not know them and could not provide their names. Three males were arrested and a crowd of people that had formed. PO McCadden did not see § 87(2)(b) get punched by an officer.

Witness Officer: PO THOMAS ADAMS

- PO Adams is a § 87(2)(b) white male who is § 87(2)(b), with brown hair and brown eyes.
- On July 6, 2010, PO Adams worked 3:00 p.m. by 11:35 p.m. PO Adams was assigned to Sector PTU and was dressed in uniform. He was assigned RMP# 4690 with PO Bennett (encl. 19A-N).
- On February 8, 2011, PO Adams was interviewed at the CCRB (encl. 13A-B).

Memo Book

PO Adams did not have any memo book entries regarding this incident (encl. 12A-D).

CCRB Statement

PO Adams responded to a radio run that an officer needed assistance. PO Adams observed multiple people fighting with multiple officers. PO Adams observed an officer attempting to place a male in handcuffs who fought the officers by flailing his arms and pushing the officer to get away. PO Adams assisted an officer who was fighting with an individual. PO Adams did not recall which officer he had assisted and did not recall if the officers were in uniform. PO Adams got one of the individual's arms in handcuffs. PO Adams did not see the individual get punched in the face by any officer and he did not punch the individual in the face. While the individual was on the ground, he was fighting the officers by flailing and kicking his legs. While the individual was on the ground, no officer punched him. PO Adams did observe any civilian get punched in the face by officers. PO Adams found his partner and left the scene in the same vehicle they arrived in.

Witness Officer: PO ROGER BENNETT

- PO Bennett is a § 87(2)(b) black male with black hair and brown eyes.
- On July 6, 2010, PO Bennett worked from 3:00 p.m. through 11:35 p.m. PO Bennett worked with PO Adams and was dressed in uniform. PO Bennett was assigned to patrol car with RMP# 4690 (encl. 19A-N).
- On February 8, 2011, PO Bennett was interviewed at the CCRB (encl. 15A-B).

Memo Book

PO Bennett did not have any memo book entries regarding this incident nor did he have any entries around the time of the incident (encl. 14A-B).

CCRB Statement

On July 6, 2010, at approximately 5:53 p.m., PO Bennett responded to a 10-85 radio call to assist an officer at the location. There were many officers and people present. An individual tried to fight the officers and officers brought the individual to the ground. PO Bennett saw the individual moving around a lot but did not recall anything specific. PO Bennet did not observe any office punch any civilian.

Witness Officer: Lt. JOHNNY ORELLANA

- Lt. Orellana is a § 87(2)(b) Hispanic male who is § 87(2)(b), with black hair and brown eyes.
- On July 6, 2011, Lt. Orellana worked from 2:45 p.m. through 11:30 p.m. He was assigned as platoon commander. Lt. Orellana did not write down who he worked with in his memo book. Lt. Orellana was dressed in uniform and assigned to marked patrol car with RMP# 241 (encl. 19A-N).
- On March 8, 2011, Lt. Orellana was interviewed at the CCRB (encl. 17A-B).

Memo Book

Lt. Orellana had the following memo book entries:

18:20 Responded to § 87(2)(b) § 87(2)(a) 160.50

CCRB Statement

On July 6, 2010, at approximately 5:53 p.m., Lt. Orellana responded to the scene. Two individuals were placed in handcuffs. He did not know which officers were present at the scene. Lt. Orellana did not observe any physical altercations going on between civilians and officers. Lt. Orellana did not recall any plainclothes officers being present.

NYPD Documents

SPRINT

At 5:48 PM, a female caller stated that a group of black and Hispanic males have bottles and bats. At 6:17 PM-Sectors 44 C and 44 D arrived. At 5:48 PM, additional units were called for crowd control. 44PP29, 44P, 44LT1 were present. At 5:53 PM, four were under at the location (encl. 18A-B).

Arrest Photograph

§ 87(2)(b)'s arrest photograph showed bruising on his left cheek near his nose (encl. 21A).

Civilian(s) Criminal History

- In regard to this case, § 87(2)(b) was arrested § 87(2)(a) 160.50. The case is still open and his next court date is § 87(2)(b) (encl. 23A-J).
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- § 87(2)(b) also filed CCRB case § 87(2)(b).

Conclusion

Identification of Subject Officer(s)

§ 87(2)(b) stated that an officer in plainclothes punched him in the face. § 87(2)(b) stated he would not be able to identify him in a photograph. No officer could identify any plainclothes officers who were present at the scene and neither the SPRINT nor any other police documents indicate that any plainclothes officers were present. No witnesses were able to identify or further describe this officer. § 87(2)(g)

§ 87(2)(b) also alleged that an officer whom he did not see hit him on the left side of his cheek. § 87(2)(b) did not observe this officer and therefore could not describe him. He stated he then was hit from the back on his head a fourth time and he did not see which officer did this. No officer or witness saw any officers do this and there were no police documents prepared in regard to these allegations. § 87(2)(g)

PO Greaney acknowledged to punching a Hispanic male in the face and transporting him to the stationhouse. § 87(2)(b) described PO Greaney as chubby white male with a bald head, in uniform, 5'8" tall, and 220 pounds. PO Greaney is a § 87(2)(b) white male who is § 87(2)(b), with a bald head and blue eyes. § 87(2)(b) also stated that PO Greaney transported him to the stationhouse. § 87(2)(g)

§ 87(2)(b) alleged that an officer punched him and that an officer refused to provide him with his name and shield number. § 87(2)(b) did not identify these officers and did not provide a sworn statement to the CCRB. § 87(2)(g)

Allegations Not Pled

§ 87(2)(b) alleged that his shirt was ripped when he was picked up from the ground from being handcuffed. § 87(2)(b) stated that he was struggling with officers on the ground and characterized the damage as incidental. § 87(2)(b) stated that an officer refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b) while being transported to the stationhouse and inside the stationhouse. § 87(2)(b) did not allege this occurred.

Investigative Findings and Recommendations

Allegation A: Officers used physical force against § 87(2)(b)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **Allegation A** be closed as *Officer(s) Unidentified*.

Allegation B: Force: PO Michael Greaney used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Greaney punched him on the right cheek, continued to hit him when he was on the ground, and then punched him on the right side of his face after he was already in handcuffs. § 87(2)(b) observed two uniformed male officers punch § 87(2)(b) while § 87(2)(b) was on the ground, but § 87(2)(b) stated that he would not be able to identify these officers. § 87(2)(b) did not observe any uniformed officer punch § 87(2)(b). PO Greaney acknowledged that he punched § 87(2)(b) in the face one time to keep him away when he threatened him physically. PO Bennett and PO Adams stated that § 87(2)(b) was resisting arrest, but neither of them observed PO Greaney punch § 87(2)(b). No other officer observed any officer punch § 87(2)(b) § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation B** be closed as *Unsubstantiated*.

Allegation C: Force: An officer used physical force against § 87(2)(b)

Allegation D: Abuse of Authority: An officer refused to provide his name and shield number to

§ 87(2)(b)
§ 87(2)(g) [REDACTED], it is therefore recommended that **Allegations C and D** be closed as *Victim Uncooperative*.

Team: ____Four____

Investigator: _____ Stacy Paver _____ April 28, 2011
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date